UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Plaintiff, v. Robert F Kennedy, JR, et al. , Defendant.	Case No.: CV-25-03367-PHX-SMB **AMENDED MOTION FOR PRELIMINARY INJUNCTION (PROTECTIVE ORDER)**

Pursuant to Fed. R. Civ. P. 7(a) and Local Rule 7.1(b)(1). No responsive pleading has been filed.

I. INTRODUCTION

Plaintiff Kevin D. Turnage respectfully moves this Court for a preliminary injunction (protective order) to enjoin the United States Indian Health Service ("IHS") from taking any further adverse personnel actions against him. The motion complies with Local Rule 7.2 of the District of Arizona, and the parties have engaged in a good-faith meet-and-confer process (see Good-Faith Consultation Certificate, Exhibit A).

II. JURISDICTION AND VENUE

1. This Court has **subject-matter jurisdiction** under 28 U.S.C. § 1331 because Plaintiff's claims arise under the Whistleblower Protection Act, 5 U.S.C. § 2302(b)(8), and related federal statutes.
2. **Venue** is proper in the District of Arizona pursuant to 28 U.S.C. § 1391(b)(2) because a substantial part of the events giving rise to the claim occurred at the Phoenix Indian Medical Center, a facility of IHS located in Arizona, and Defendant is an agency of the United States.

III. MEET-AND-CONFER EFFORTS

3. In compliance with **Local Rule 7.2**, Plaintiff initiated a meet-and-confer on **December 1-2, 2025** (see attached email correspondence, Exhibit A-1). Plaintiff requested that Defendant respond by **December 9, 2025**.
4. Defendant's counsel replied on **December 15, 2025** requesting an extension of the response deadline to **December 19, 2025** (Exhibit A-2). Plaintiff declined the extension and reiterated the original deadline (Exhibit A-3).
5. No further response was received. The meet-and-confer effort therefore failed, and Plaintiff now seeks judicial relief.

IV. FACTUAL BACKGROUND

A. Employment

6. Plaintiff is a career federal employee (GS-0610-12) serving as a **Nurse Consultant / Policy & Procedures Officer** at the Phoenix Indian Medical Center (PIMC), a component of IHS.

B. Protected Disclosures

7. Beginning in **June 2025**, Plaintiff made multiple protected disclosures to:

   – the Office of Special Counsel,

   – the HHS Office of Inspector General,

   – the Centers for Medicare & Medicaid Services,

   – the Joint Commission, and

   – Members of Congress.

   The disclosures alleged:

   a. Patient-safety violations and hazardous radiation-protocol failures;

   b. Misuse of federal funds and procurement-policy breaches; and

   c. Systemic failures in internal policy compliance and governance.

   Each disclosure was made in good-faith belief that the information evidenced a violation of law, gross mismanagement, waste of funds, abuse of authority, or a substantial danger to public health and safety. (See Plaintiff's Affidavit, Exhibit 2.)

C. Retaliatory Personnel Actions

8. Within weeks of the disclosures, IHS placed Plaintiff on a series of non-duty, **paid** leaves:

Leave Type	Dates	Workdays
Administrative Leave	June 27 – July 14, 2025	10
Investigative Leave	July 15 – August 26, 2025	30
First Extension	August 27 – October 9, 2025	30
Second Extension	October 10 – November 25, 2025	30
Notice Leave (until further notice)	Began November 25, 2025	–

9. None of the leave actions were accompanied by a **written threat/legitimate-interest analysis** required by **5 U.S.C. § 7513(b)** and **5 C.F.R. § 630.1505(b)**. The extensions were unsigned and lacked the approvals mandated by law.

D. Constructive Suspension

10. From **June 27 through November 25, 2025**, Plaintiff was on non-duty paid status for **108 federal workdays**, exceeding the **14-day** threshold that constitutes a **constructive suspension** under **5 U.S.C. § 7512(2)** and **5 C.F.R. § 752.404**.

E. Due-Process Deficiencies

11. The leave actions lacked written determinations of threat, were unsigned, and were not the **least-restrictive alternative** required by statutory due-process provisions. No opportunity to respond was provided before the leaves were imposed.

F. Irreparable Harm

12. While Plaintiff continues to receive his full salary, benefits, and seniority because he is on **paid non-duty status**, he nevertheless suffers:

- **Damage to his professional reputation** within the federal health-care community;

- **Inability to perform his official duties**, which impairs his career development and the functioning of the agency; and

- A **continuing threat of further retaliation**, which creates a chilling effect on other federal employees who might consider making protected disclosures.

Monetary compensation for lost wages is unnecessary, but the non-monetary harms are severe and cannot be fully remedied by money alone.

V. LEGAL STANDARD

13. **Fed. R. Civ. P. 65(b)(1)** permits a court to issue a preliminary injunction when the movant shows:
14. a likelihood of success on the merits;

15. that it will suffer irreparable injury absent the injunction;

16. that the balance of equities tips in its favor; and

17. that an injunction is in the public interest.

18. The **Whistleblower Protection Act** (5 U.S.C. § 2302(b)(8)) bars any personnel action taken "*in retaliation*" for a protected disclosure. The Act creates a substantive right to be free from retaliatory adverse actions and a cause of action for injunctive relief.
19. Courts consistently apply the four-part Rule 65(b)(1) test in whistleblower cases, e.g., *Rosario-Fabregas v. United States*, 833 F.3d 1342 (9th Cir. 2016); *Burlington Northern & Santa Fe Ry. v. White*, 548 U.S. 53 (2006).

VI. ARGUMENT

A. Likelihood of Success on the Merits

16. Plaintiff has established a **prima-facie case** under **5 U.S.C. § 2302(b)(8)**:

- He made protected disclosures concerning illegal or improper conduct (see Affidavit, Exhibit 2).

- Within a short period, Defendant imposed a series of adverse personnel actions that are the very type of retaliation the statute forbids.

- The pattern, timing, and lack of due-process justification create a strong inference of causation.

Accordingly, Plaintiff is likely to succeed on the merits.

B. Irreparable Harm

17. Although Plaintiff continues to receive his salary and benefits, he suffers **irreparable non-monetary injury**: damage to his reputation, inability to

perform his official duties, and the ongoing threat of further retaliation. These harms cannot be fully compensated by money and will continue unless the Court enjoins Defendant's actions.

C. Balance of Equities

18. The equities heavily favor Plaintiff. Defendant's interest in imposing the leaves is outweighed by the statutory prohibition against retaliation and the lack of any legitimate-interest analysis. Reinstating Plaintiff to his former duties and enjoining further adverse actions will restore his professional standing without harming any legitimate governmental interest.

D. Public Interest

19. The public interest is served by **enforcing the Whistleblower Protection Act**, preserving the integrity of federal employment, and ensuring that federal agencies do not retaliate against employees who expose wrongdoing. Granting the injunction promotes governmental transparency and accountability.

VII. REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

1. **Issue a Protective Order** enjoining IHS, its officers, agents, servants, employees, and any persons acting in concert, from taking any further adverse personnel actions, disciplinary measures, or restrictions on Plaintiff's access to IHS facilities, **pending final resolution of this action**;
2. **Order Defendant to immediately reinstate Plaintiff** to his former GS-0610-12 position (Nurse Consultant / Policy & Procedures Officer) at the

Phoenix Indian Medical Center, with full duties and any accrued leave that he is entitled to;

3. **Award Plaintiff reasonable attorney's fees and costs** pursuant to **5 U.S.C. § 7701(a)** and any other applicable authority;
4. **Grant such other and further relief** as the Court deems just and proper, including but not limited to an award of prejudgment interest, a permanent injunction, and any necessary declaratory relief.

A **proposed order** is attached as **Exhibit C**.

VIII. SUPPORTING AFFIDAVIT

Affidavit of Kevin D. Turnage (Exhibit B) is submitted herewith and incorporated by reference. The affidavit is sworn under penalty of perjury and sets forth, in detail, the protected disclosures, the retaliatory personnel actions, the due-process deficiencies, and the irreparable harm suffered.

IX. GOOD-FAITH CONSULTATION CERTIFICATE

A **Good-Faith Consultation Certificate** (Exhibit A) is attached, confirming that Plaintiff engaged in a meet-and-confer effort with Defendant's counsel in compliance with Local Rule 7.2.

X. CERTIFICATE OF SERVICE

I hereby certify that on **December 18, 2025,** I served the foregoing Amended Motion for Preliminary Injunction, the supporting Affidavit, and all exhibits on all parties

registered in the CM/ECF system by electronic filing, which constitutes service under Local Rule 5.6(c)(1) of the District of Arizona. All parties in this action are registered CM/ECF participants; therefore no additional service was required.

If any party were not a CM/ECF participant, service would have been made by first-class mail (or fax, as appropriate) on the date of service, and a certificate of service would have been filed pursuant to Local Rule 5.6(c)(2).

Respectfully submitted,

/s/ **Kevin D. Turnage**

Kevin D. Turnage, Pro Se Plaintiff

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Date: **December 18, 2025**

EXHIBITS

- **Exhibit A** – Good-Faith Consultation Certificate (including email excerpts dated Dec 1-2 2025 and Dec 15 2025).

  Exhibit B – Affidavit of Kevin D. Turnage
- **Exhibit C** – Proposed Order Granting Protective Order and Related Relief.